No. 24-1311

UNITED STATES COURT OF APPEALS FOR THE FIRST CIRCUIT

UNITED STATES,

Appellee,

v.

MARK ANTHONY FIGUEROA,

Defendant - Appellant.

On Appeal from Judgment of Conviction in the United States District Court for the District of Massachusetts

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BRIEF OF APPELLANT

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REQUEST FOR ORAL ARGUMENT

Pursuant to Fed. R. App. P. 34(a) and First Cir. R. 34(a), Appellant Mark Figueroa respectfully requests oral argument. This case involves fact-specific arguments regarding whether inadmissible testimony infected the entire case and whether — in a case that was fairly weak — the prejudice from those errors was exacerbated by an improper jury instruction which this Court has warned this specific trial judge not to give. Oral argument would assist the Court.

STATEMENT OF JURISDICTION

This is a direct appeal from a judgment in a criminal case entered by the United States District Court for the District of Massachusetts. That Court exercised jurisdiction under 18 U.S.C. § 3231. This Court's appellate jurisdiction rests upon 28 U.S.C. § 1291 and 18 U.S.C. § 3742. On March 20, 2024, Mr. Figueroa was sentenced to 120 months' incarceration, followed by three years of supervised release. R.A.12.[1] The judgment entered on March 22, 2024. Add.4. A timely notice of appeal was filed on April 1, 2024. R.A.529.

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[1] The record appendix is cited herein as "R.A.[page]." The addendum to the brief is cited as "Add.[page]." The trial transcripts are cited as "Tr. [Vol.]:[page]," and the final pretrial conference transcript is cited as "PTC Tr.[page]."

ISSUES PRESENTED

I. Whether inflammatory and irrelevant evidence that created sympathy for the cooperating witness whose credibility was essential to the government's case and promoted guilt by association requires a new trial.

II. Whether improper overview testimony, incorporating conclusory statements regarding the defendant's relationship with cartel members, hearsay, and the imprimatur of the government, as well as improper lay opinion testimony, cumulatively require reversal.

STATEMENT OF THE CASE

On November 10, 2021, a grand jury returned an indictment against Figueroa alleging one count of money laundering conspiracy, in violation of 18 U.S.C. § 1956(h). R.A.14; Docket no. 21-cr-10333-RGS. A jury trial was held from March 27 to March 30, 2023 (Stearns, J., presiding). The jury convicted Figueroa of the charged offense. R.A.528. Following a sentencing hearing held on March 20, 2024, Figueroa was sentenced to 120 months imprisonment, followed by three years of supervised release. R.A.12. The judgment entered on March 22, 2024, and Figueroa filed a timely notice of appeal on April 1, 2024. R.A.529.

A. Statement of Facts

1. The Alleged Conduct: Cash Transactions

At trial, the government elicited descriptions of six incidents involving large cash transactions connected to Figueroa.

First, on February 27, 2019, agents surveilling Figueroa's home saw him leave at around 10:44 a.m. carrying a brown duffel bag. Tr.1:57 (R.A.73). Agents then followed Figueroa to the Yotel Boston Hotel, where he entered with the duffel bag. Tr.1:57–58 (R.A.73–74). Agents saw him meet with a person in the lobby area, then take the elevator to the third floor.[2] Tr.1:58 (R.A.74). After the meeting, he left the area. Tr.1:59 (R.A.75). The person that Figueroa met with then went to a Bank of America and deposited $80,010 in cash with a bank teller. Tr.1:60–61 (R.A.76–77). Agents compared surveillance video from the Yotel with video from the Bank of America and found the person who met with Figueroa was the same person who deposited the money. Tr.1:61 (R.A.77). He was identified as Alfredo Vidal-Ibarra. Tr. 1:61 (R.A.77).

Second, on the morning of March 15, 2019, agents saw Mr. Figueroa leave his house and go to terminal C at Logan Airport. Tr.1:69–70 (R.A.85–86). He boarded a plane to Orlando, Florida. Tr.1:70 (R.A.86). HSI agents in Florida received information that there was going to be a money drop and pickup on

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[2] Agents also obtained security footage from the hotel. Tr.1:59 (R.A.75).

March 16, 2019. Tr.2:62 (R.A.239). Agents were informed that the courier would be wearing a red shirt and carrying a backpack with an attached cylindrical bag. Tr.2:65 (R.A.242). Agents went to a Kohls parking lot and observed a pickup truck, driven by Figueroa. Tr.2:64–66 (R.A.241–43). A silver minivan pulled up and a man in a red shirt with the described backpack got out of the passenger's side. Tr.2:67 (R.A.244). He entered Figueroa's pickup truck. Tr.2:67 (R.A.244).

SUMMARY OF ARGUMENT

The trial judge erred in allowing the government's cooperating witness to describe his kidnapping, beating, and torture by drug cartel members over objection. The parties agreed this incident was wholly unrelated to Figueroa. The probative value of this testimony was minimal, but the unfair prejudice was severe. A jury instruction allowing the jury to discuss the case prior to deliberations (which this Court has explicitly prohibited) and the government's closing argument exacerbated the prejudice. (Infra at 17–27).

Several of the government's law enforcement witnesses gave conclusory, prejudicial testimony, including prohibited overview witness testimony. The government's first witness testified to hearsay and matters that he had no direct knowledge of and he also bolstered the testimony of upcoming witnesses. Two other witnesses offered conclusory testimony on the ultimate issue. The cumulative

effect of these errors, preserved and unpreserved, demands a new trial. (Infra at 28–37).

ARGUMENT

I. The trial judge erred in admitting irrelevant and highly prejudicial evidence regarding the Sinaloa drug cartel, kidnapping, and torture.

Though there was no evidence that Figueroa was a cartel member, the cloud of the Sinaloa drug cartel hung over his trial. The government elicited evidence that their cooperator, Magana, had been kidnapped, beaten, and threatened by cartel members in Mexico months before the charged conspiracy began. The parties agreed that Figueroa was not involved in this misconduct. The government used this irrelevant evidence to evoke sympathy for Magana, to enhance his credibility, and to suggest guilt by association. Further, the government stretched the evidence in its closing argument to attempt to associate Figueroa with this misconduct. This Court should reverse.

A. Background & Legal Standard

At the pretrial hearing, the government foreshadowed that its cooperating witness would testify "about his experience being kidnapped by the drug cartel." PTC Tr. 27 (R.A.27). The Court ruled, "I think a witness can tell his or her own story as long as it's relevant to what we are doing. It sounds like it might be a kind

of Breaking Bad interest in the testimony as it unfolds." PTC Tr. 27 (R.A.27). Defense counsel stated his belief that the proffered testimony was irrelevant. PTC Tr. 27 (R.A.27). The judge replied that he would simply give a curative instruction that there is no allegation that the defendant was involved in a plot to kidnap anyone. PTC Tr. 27–28 (R.A.27–28). The government agreed that there is no allegation that Figueroa was involved in this conduct. PTC Tr. 28 (R.A.28).

Because the judge ruled definitively that the evidence of kidnapping was admissible even though it was unrelated to Figueroa, the issue is preserved. Fed. R. Evid. 103(b); *United States v. Mahone*, 453 F.3d 68, 70 (1st Cir. 2006) (evidentiary objection raised in limine not renewed at trial, issue preserved, pre-trial ruling was definitive); *United States v. McGauley*, 279 F.3d 62, 72 n.7 (1st Cir. 2002) (same). Preserved evidentiary rulings are reviewed for abuse of discretion. *United States v. Villa-Guillen*, 102 F.4th 508, 515 (1st Cir. 2024). If error is found, the government must prove it was harmless; that is, the government has the burden to demonstrate that it is "highly probable that the error did not influence the verdict." *United States v. Casas*, 356 F.3d 104, 121 (1st Cir. 2004).

CONCLUSION

For the foregoing reasons, standing individually and in combination, this Court should vacate Mr. Figueroa's conviction and remand the case to the District Court for a new trial.

Respectfully submitted,

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March 17, 2025

CERTIFICATE OF COMPLIANCE

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/s/ David J. Nathanson
Attorney for Defendant - Appellant Mark Anthony Figueroa
Dated: March 17, 2025

CERTIFICATE OF SERVICE

I hereby certify that on March 17, 2025, I electronically filed the foregoing with the Clerk of the Court for the United States Court of Appeals for the First Circuit by using the appellate CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ David J. Nathanson
Attorney for Defendant - Appellant Mark Anthony Figueroa
Dated: March 17, 2025

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[Transcription note: the addendum pages of the filed exemplar are scanned images without a text layer; only the entry is shown here.]